1. The Regular Meeting of the City Council was held in City Hall Council Chambers, 405 6th Street, on Monday, October 26, 2026, at 4 p.m. The following Council Members were present on call of the roll: Berenstein, Bertrand, Rayford, Schoenherr, and Scott. Absent: None.

Staff members present: Michael Collett, City Manager, Nicole M. DuBois, City Attorney, and Heidi Farrens, City Clerk.

CONSENT AGENDA

Motion by Scott, seconded by Berenstein, to adopt the Consent Agenda, all voting aye. Items 2 through 12G are approved unanimously unless specifically noted after the item.

2. Reading of the City Council Minutes of October 14, 15, and 19, 2026.

Reading of the minutes of October 14, 15, and 19, 2026, was waived and as part of the consent agenda the minutes were approved as presented.

3. CODE SUPPLEMENT - Resolution adopting the 2026 Third Quarter Supplement to the Sioux City Municipal Code covering ordinances through Ordinance No. 2026-0906. **2026-0993**

4. DONATIONS - Resolution accepting all donations under $25,000 for the reporting period of July 2026 through September 2026. **2026-0994**

5. ACTIONS RELATING TO BOARDS, COMMISSIONS, AND COMMITTEES

   A. HUMAN RIGHTS - Motion appointing Winonah Leader Charge to the Human Rights Commission to complete the balance of a three-year term expiring June 29, 2029, replacing Valerie Uken. **2026-0995**

   B. EFTAB - Motion accepting the Events Facilities and Tourism Advisory Board's FY 2026 Annual Report. **2026-0996**

6. ACTIONS RELATING TO GRANTS

   A. IFA - Resolution approving and accepting Contract Amendment No. 2 to the Emergency and Innovative Housing Fund Grant Agreement between the City of Sioux City and the Iowa Finance Authority extending the end date to June 30, 2027, and adding information related to Iowa Code Section 804.32. **2026-0997**

Jill Wanderscheid, Neighborhood Services Manager, provided information on the item.

   B. ODCP - Resolution authorizing the Sioux City Police Department to accept grant funds in the amount of $106,417 from the State of Iowa Office of Drug Control Policy (ODCP) through the 2026 Byrne Justice Assistance Grant (JAG)/State Crisis Intervention (SCIP) Innovation Program for a cloud-based scalable security platform for the period of September 1, 2026, through June 30, 2027. (Grant No. 24-SCIP-676576) **2026-0998**

Captain Ryan Bertrand, Police Department; and Captain Mike Manthorne, Police Department, provided information on the item.

7. ACTIONS RELATING TO AGREEMENTS AND CONTRACTS

A. IDHHS - Resolution approving the transfer of public funds to the Iowa Department of Health and Human Services and approving an Intergovernmental Transfer of Public Funds Agreement between the Iowa Department of Health and Human Services and Sioux City Fire Rescue for Fiscal Year 2027–2028. **2026-0999**

Jim Haden, Emergency Medical Services Director; and Teresa Fitch, Assistant City Manager, provided information on the item.

B. SIMPCO MPO - Resolution approving an Agreement between the City of Sioux City and Siouxland Interstate Metropolitan Planning Council Metropolitan Planning Organization for the completion of the Whispering Creek Extension Planning Study. **2026-1000**

C. CARGILL - Resolution approving and accepting a Temporary Construction Easement Agreement with Cargill, Incorporated in connection with the 11th Street Reconstruction Project. (IDOT Project No. STP-U-7057(722)—70-97/City Project No. 7344-719-380) (property located at 1619 11th Street) **2026-1001**

D. SUBSURFCO - Resolution approving a contract with SuBSurfco, LLC in the amount of $624,577.40 for the 17th Street Emergency Water Main Improvements Project. (Ingleside Avenue to Court Street) (Project No. 7599-519-123) **2026-1002**

Scott abstained on the item due to a conflict of interest.

E. PIPER SANDLER AMENDMENT - Resolution approving the Third Amendment to the Agreement with Piper Sandler & Co. of Des Moines, Iowa, to exercise the third option to extend the Financial Advisory Services Agreement for one (1) year for the fiscal year ending June 30, 2028, removing references to wastewater (sewer) projects from the scope of services under the Agreement. **2026-1003**

F. PIPER SANDLER AGREEMENT - Resolution approving a Financial Services Agreement with Piper Sandler & Co. of Des Moines, Iowa, to provide financing services with respect to the renovation of the City's Wastewater Treatment Plant, with this Agreement terminating upon completion of funding of the project. **2026-1004**

Teresa Fitch, Assistant City Manager, provided information on the item.

G. WALKER CONSULTANTS - Resolution approving a Consulting Services Agreement with Walker Consultants, Inc. for Rivers Landing, Discovery, Heritage, and Marriott Parking Ramps condition assessment in connection with the 2027 Parking Ramp Repairs Project in an amount not to exceed $36,250. (Project No. 728-012) **2026-1005**

Tiffany Clayborne, Parking Operations Supervisor, provided information on the item.

H. GEN DIGITAL - Resolution approving a Group Application with Gen Digital Inc. to provide Norton LifeLock identity theft protection services as a voluntary benefit option for City employees for a period of three (3) years. **2026-1006**

8. ACTIONS RELATING TO PERSONNEL

A. ECONOMIC/COMMUNITY DEVELOPMENT - Resolution suspending the requirements of Section 400.11(1)(a) of the Iowa Code for the hiring of employees for the Economic and Community Development Department for a period of one (1) year.

Request by Scott to pull the item from the Consent Agenda for a separate vote, the resolution was moved and seconded as part of the Consent Agenda, Bertrand and Schoenherr voting aye, Berenstein, Rayford, and Scott voting nay, thus the item failed.

B. WWTP/UNDERGROUND UTILITIES - Resolution suspending the requirements of Section 400.11(1)(a) of the Iowa Code for the hiring of employees for the Water Treatment Plant and Underground Utilities Department for a period of one (1) year. **2026-1007**

Brad Puetz, Utilities Director, provided information on the item.

C. AUTOMOTIVE EQUIPMENT OPERATOR - Resolution amending the Position Classification Manual adopted by Resolution No. S-31050 by approving and adopting an updated job description for the position of Automotive Equipment Operator II, Class Code IV-6111. **2026-1008**

D. MUSEUM DIRECTOR - Motion accepting the annual evaluation of the Museum Director. **2026-1009**

9. ACTIONS AUTHORIZING PAYMENTS

A. C.W. SUTER - Resolution accepting the work and authorizing final payment to C.W. Suter & Son, Inc. for the Discovery Parking Ramp AHU Replacement Project. (Project No. 7504-728-012) **2026-1010**

Scott abstained on the item due to a conflict of interest.

B. BAINBRIDGE CONSTRUCTION - Resolution accepting the work and authorizing final payment to Bainbridge Construction, LLC for the Fairmount Street Watermain Replacement Project - Leech Avenue to Gordon Drive. (Project No. 7458-519-272) **2026-1011**

C. CRITICAL PIPELINE - Resolution accepting the work and authorizing final payment to Critical Pipeline Repair LLP for the 12th Street and Floyd Boulevard Storm Sewer Repair Project. (Project No. 7430-549-101A) **2026-1012**

10. ACTIONS RELATING TO PURCHASING

A. ARTHUR J. GALLAGHER - Resolution authorizing and directing the City Manager to purchase Property Insurance from Arthur J. Gallagher Risk Management Services, LLC. **2026-1013**

B. PVS DX - Resolution awarding a purchase order for one year from October 26, 2026, to October 25, 2027, to PVS DX, Inc. of Omaha, Nebraska, in the amount of $2.89 per gallon for the purchase of liquid ferric chloride for the Wastewater Treatment Plant. (Bid No. 295654) **2026-1014**

11. APPLICATIONS FOR ALCOHOL LICENSES

A. ON-PREMISE SALES
   1. CLASS C RETAIL ALCOHOL LICENSE (liquor/wine/beer/carry-out)
      a. The Arena, 4501 Southern Hills Drive (Renewal)
      b. Horizon, 1220 Tri View Avenue (New)
      c. Jim's Lounge, 4503 Stone Avenue (Renewal)
   2. SPECIAL CLASS C RETAIL ALCOHOL LICENSE (wine/beer/carry-out)
      a. Cone Park, 3800 Line Drive (Renewal)

B. OFF-PREMISE SALES
   1. CLASS B RETAIL ALCOHOL LICENSE (wine/beer)
      a. Circle S Riverside, 2404 Riverside Boulevard (Renewal)
   2. CLASS E RETAIL ALCOHOL LICENSE (liquor/wine/beer)
      a. Downtown Liquor, 1203 5th Street (Renewal)

12. BOARD, COMMISSION, AND COMMITTEE MINUTES

A. Airport Board of Trustees – September 17, 2026
B. Art Center Board of Trustees – October 15, 2026
C. Building and Housing Code Board – April 7, 2026
D. Environmental Advisory Board – August 13, 2026
E. Events Facilities and Tourism Advisory Board – July 16, 2026
F. Library Board of Trustees – September 29, 2026
G. Woodbury County Information and Communication Commission – September 9, 2026

- End of Consent Agenda -

RECOMMENDATIONS OF PLANNING AND ZONING AND BOARD OF ADJUSTMENT

13. Motion acknowledging Board of Adjustment actions of October 13, 2026. **2026-1015**

Andrew Glisar, Planning and Zoning Commission Chair, provided information on the item.

Motion by Scott, seconded by Rayford, to approve the motion, all voting aye.

14. Resolution assenting to the request of Overlook Developers, LLC to annex certain land into the City of Sioux City, Iowa. (property located at 7103 Morningside Avenue) **2026-1016**

Andrew Glisar, Planning and Zoning Commission Chair; Chris Madsen, Planning Manager; and Gordon Phair, City Engineer, provided information on the item. Dan Hiserote, Overlook Developers, LLC; Julia Adams, Joe Carr, Mary Carr, Brian Miller, Randy Buschmann, Jodi House, David Lyman, Bob Petrick, Cynthia Bauman, Linda Murphy, and Dylan Hiserote spoke on the item.

Motion by Scott, seconded by Berenstein, to adopt the proposed resolution, all voting aye.

15. Hearing and Ordinance placing the newly annexed territory described as 7103 Morningside Avenue in the zone classification GR (General Residential). (The Planning and Zoning Commission recommends approval of SR (Suburban Residential) zoning.) (File No. 2026-105)

Andrew Glisar, Planning and Zoning Commission Chair; and Chris Madsen, Planning Manager, provided information on the item. Dan Hiserote, Overlook Developers, LLC; Randy Buschmann, Josh Koppelman, and Julia Adams spoke on the item.

Motion by Schoenherr, seconded by Bertrand, to open the hearing, citizen comments were received. Motion by Bertrand, seconded by Schoenherr, to amend the item by accepting the Planning and Zoning Commission recommendation of SR (Suburban Residential) zoning, Berenstein, Bertrand, Rayford, and Schoenherr voting aye, Scott voting nay. The hearing was closed and first consideration of the ordinance was passed as amended, Berenstein, Bertrand, Rayford, and Schoenherr voting aye, Scott voting nay.

HEARINGS

16. Hearing and Resolution approving plans, specifications, form of contract, and estimated cost for construction of the Main Overlook Project. (Project No. 7600-625-084) **2026-1017**

Motion by Scott, seconded by Schoenherr, to open the hearing and adopt the proposed resolution, citizen comments were not offered and the hearing was closed, all voting aye.

17. CITIZEN CONCERNS

Mary Murphy and Linda Murphy discussed agenda items 14 and 15.

Brett Watchorn discussed agenda items 14 and 15, stormwater fees, City Council regular meeting start time, and cameras utilized by the Police Department.

18. COUNCIL CONCERNS

Bertrand commended the Police Department's "POP" program (Problem Oriented Policing). Bertrand discussed upcoming bids for the Wastewater Treatment Plant project and funding for lead pipe replacement.

Berenstein commended the Sioux City Convention Center on a well-run recent event, The Siouxland Initiative Annual Luncheon, and discussed long-term planning for the City.

Rayford discussed speed control on Old Highway 141.

19. ADJOURNMENT

There being no further business, the meeting was adjourned at 5:50 p.m., on motion by Scott, seconded by Berenstein, all voting aye.

ATTEST: _____ _____
Heidi Farrens, City Clerk Robert E. Scott, Mayor